

IN THE LAHORE HIGH COURT  
MULTAN BENCH, MULTAN  
JUDICIAL DEPARTMENT

**W.P.No.18489/2016**

Multan Electric Power Company Limited  
MEPCO  
Vs.  
National Electric Power Regulatory Authority  
NEPRA, & 2 others

| Sr. No. of order/<br>Proceedings | Date of order/<br>Proceeding | Order with signature of Judge, and that of<br>Parties' counsel, where necessary |
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**08.02.2017** Mr. Muhammad Tariq Rasheed Qamar, Advocate  
for petitioner.  
Mr. Aurangzeb Ghuman, Advocate for  
respondents.

This constitutional petition is directed against  
order dated 30.08.2016 passed by respondent No.1/National  
Electric Power Regulatory Authority (NEPRA) “**the Authority**”  
whereby the appeal filed by petitioner against the order dated  
25.9.2014 passed by respondent No.2/Electric Inspector, Multan  
Region, Multan was dismissed.

2. The brief facts of the case are that metering equipment of  
respondent No.3 was checked by Deputy Manager (TS) M&T  
MEPCO Vehari on 19.12.2013 in the presence of Muhammad  
Usman, representative of respondent No.3/Consumer. The meter  
was found 11.11% slow and checking report dated 19.12.2013  
was prepared on the spot which was endorsed by Deputy  
Manager (TS) M&T MEPCO, Vehari and was also signed by the  
representative of the consumer. A notice was issued to the  
consumer/respondent No.3 to explain his position and detection  
units were pointed out to be debited to the consumer account due  
to slowness of meter. Feeling aggrieved the respondent No.3 filed  
a petition before the respondent No.2 who directed that a healthy  
meter be installed as check meter. The disputed meter was found

“washed out”, in which regard a report dated 21.8.2014 was prepared. The respondent No.2/Electric Inspector decided the case of the petitioner on 25.9.2014 in favour of respondent No.3 and declared the charging of detection bill of Rs.570,619/- during billing month March, 2014 and bill adjustment amount of Rs.26,831/- during billing month May, 2014 as null, void and of no legal effect and directed to the petitioner to withdraw both the above mentioned amounts and overhaul the consumer’s account accordingly by adjusting all credit, debit, deferred-amount and already-made-payments. Feeling aggrieved of the said order, the petitioner filed an appeal before respondent No.1 which was dismissed on 30.8.2016 as barred by time. Both the orders dated 25.9.2014 and 30.8.2016 are under challenge by the petitioner through this constitutional petition.

3. The learned counsel for the petitioner has argued that as the copy of the order dated 25.09.2014 was not provided to the petitioner as required by law, therefore the limitation had not commenced and the appeal was wrongly dismissed as time barred.

4. Limitation of 30 days is provided for filing appeal under Section 38 (3) of the NEPRA Act, 1997. The respondent No.1 had dismissed the appeal filed by petitioner as the impugned decision was announced on 25.9.2014 and a copy thereof was received by MEPCO on 6.11.2014 and appeal was filed on 18.05.2015, i.e. by delay of 192 days. Furthermore, the appeal has also been dismissed on the basis of merits as well and NEPRA Authority on the basis of calculation reached the conclusion as under:

- *Average MDI per month for the corresponding period before dispute i.e. October 2011 to December 2011=188 kW + 235 kW + 239kW/3=221kW*
- *Average MDI per month for the corresponding period before dispute i.e. October 2012 to December 2012=196kW + 199 kW + 186kW/3=194kW*
- *Average MDI per month for the disputed period i.e. October 2013 to December 2013=241kW + 231kW+244 kW/3 = 239kW*

*From the above analysis, we are inclined to agree with the contention of the respondent that the MDI recorded during the disputed period is higher than the MDI recorded during the corresponding periods before the dispute. Therefore, the detection bill for the disputed period is not justified and the respondent is not liable to pay the same.*

5. It was observed by the respondent no. 1 that the petitioner had not associated the respondent No.3 while checking the meter. The respondent has denied that Muhammad Usman was their representative and the petitioner had not been able to rebut the same, so the process of checking the meter was unilateral. In the affidavit attached with the application for condonation of delay the petitioner has stated that they came to know of impugned order on 23.2.2015 contrary to 06.11.2014 as stated in order of respondent No.1. If their stance is true even then the appeal filed on 18.5.2015 was barred by 54 days. The respondent No.1 rightly dismissed the appeal as barred by time. No illegality or erroneous exercise of jurisdiction has been pointed out whereby the orders passed by the respondents no. 1 and 2 could be declared to have been passed without lawful authority and of no legal effect. No ground to interfere has been made out.

6. For what has been discussed above, this petition be devoid of merit is hereby dismissed.

**(Muzamil Akhtar Shabir)**  
**Judge**

*\*KMSubhani\**